

HEADNOTE

- “1. The protection of confidential information contained in written submissions and annexes can only be requested within a workflow according to Rule 262 and/or 262A RoP simultaneously with initial filing or within 14 days thereof.*
- 2. These requests must be repeated upon filing of further written submissions and annexes.*
- 3. In exceptional cases, limited protection according to Rule 262A RoP may be provided within a workflow according to Rule 9 RoP.*
- 4. Insofar as the need for protection of the information is undisputed between the parties, no further judicial review of the need for protection is required in the context of a request according to Rule 262A RoP.*
- 5. A threat of a penalty payment according to Rule 354.3 RoP is limited in amount by the request.”*

COURT
Local Division in Munich

PATENT
EP3221117

Multiple extrusion press head

PROCEEDINGS
Procedural order

KEYWORDS

Art. 76(1) UPCA

R 4.1

262a RoP

Workflows

Protection of Confidential Information

Threat of Penalty

Limitation by Application

Rule 262 Public access to the register

SUMMARY

The Local Division in Munich issued a procedural order. The patent at issue relates to a multiple extrusion press head. According to the headnotes of the decision, requests to protect confidential information in written submissions and their attachments must be made either within a formal confidentiality workflow under the Rules of Procedure or within 14 days of the initial filing. When parties submit additional written materials during proceedings, they must renew their confidentiality requests for those new documents. In limited circumstances, parties may seek confidentiality protection through an exceptional procedure under the Rules of Procedure, outside the standard confidentiality workflow. Where both parties agree that information requires protection, the court does not need to conduct further examination of whether that protection is justified when reviewing a confidentiality request. A request for confidentiality protection also serves to cap the maximum amount of any penalty payment that could be imposed for breach of that confidentiality.